

(34)

Tentative Ruling

Re: **Kevin Assemi v. Farid Assemi**
Superior Court Case No. 23CECG05154

Hearing Date: July 22, 2026 (Dept. 502)

Motion: by Defendant Kevin Assemi to Set Aside Writ of Attachment

**If oral argument is timely requested, it will be entertained on
Thursday, July 23, 2026, at 3:30 p.m. in Department 502**

Tentative Ruling:

To deny.

Explanation:

Having reviewed the parties' arguments, evidence, and the pleadings in the record, the court finds plaintiff Maricopa Orchards, LLC is entitled to the right to attach order issued on December 18, 2025 by ex parte application. (Code Civ. Proc. § 485.240, subd. (c).) Defendant Kevin Assemi's motion to set aside the order is denied. The alternative request to increase the amount of the undertaking is also denied.

Plaintiff's requests for judicial notice are granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By:  **on** 7-21-26 .

(Judge's initials) (Date)

(48)

Tentative Ruling

Re: ***Belcher v. Target Corporation et al.***
Superior Court Case No. 25CECG05211

Hearing Date: July 22, 2026 (Dept. 502)

Motion: By Plaintiffs for Preferential Trial Setting

**If oral argument is timely requested, it will be entertained on
Thursday, July 23, 2026, at 3:30 p.m. in Department 502**

Tentative Ruling:

To deny without prejudice. (Code Civ. Proc., § 36, subd. (a).)

Explanation:

Code of Civil Procedure section 36 governs where preference is to be granted based on age, medical reasons, in the interests of justice, or time for trial, and provides, in pertinent part:

(a) A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings:

(1) The party has a substantial interest in the action as a whole.

(2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.

(Code Civ. Proc., § 36, subd. (a).)

The intent behind the provision of a preferential trial setting under subdivision (a) is to safeguard litigants beyond a specified age against the risk that death or incapacity might deprive them of the opportunity to have their case effectively tried and the opportunity to recover damages or appropriate redress. (*Rice v. Superior Court* (1982) 136 Cal.App.3d 81, 88-89.) The preference under Code of Civil Procedure section 36, subdivision (a), is mandatory if the requirements are met. (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 534.)

An attorney may sign an affidavit in support of a motion for preference under Code of Civil Procedure section 36, subd. (a), in regard to information and belief as to the medical diagnosis and prognosis of any party. (Code Civ. Proc., § 36.5.)

Here, it is not contested that plaintiff Barbara Belcher ("Plaintiff") has a substantial interest in the action and is over 70 years old. Defendant solely argues the second element under Code of Civil Procedure, section 36, subdivision (a), is not met, specifically, that Plaintiff failed to show that her health condition is such that preference is necessary to avoid prejudicing her interest in the litigation.

Plaintiff's health conditions are addressed by way of declaration by her attorney. Plaintiff's health conditions include, but are not limited to, a traumatic brain injury, nausea, dizziness, anxiety, sound sensitivity, memory impairment, and fatigue on a daily basis. In addition, Plaintiff's medical history includes hypertension, hyperlipidemia, diabetes mellitus, and gastroesophageal reflux disease (GERD), which, counsel declares, independently increase the medical risk of deterioration over time. Plaintiff is currently receiving medical treatments to address her medical conditions.

Defendant argues that Plaintiff counsel's declaration fails to show Plaintiff's health will result in her incapacity, unavailability for trial, inability to meaningfully participate in the litigation, or that ordinary case management would prejudice Plaintiff. While plaintiff's symptoms and diagnoses are sufficiently presented, counsel's declaration does not address a prognosis. The court agrees in that the evidence before the court fails to show that Plaintiff's physical or mental health is currently deteriorating at a rate such that the standard progression of the action would prejudice Plaintiff's ability to meaningfully participate in the action or to see the action resolve.

Consequently, the motion is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By:  **on** 7-20-26 .

(Judge's initials) (Date)